

CONNECT SERVICE CONTRACT

This Connect Service Contract (hereinafter referred to as "Contract") is entered into on this 1st day of July, 2020 by and between Connect (hereinafter referred to as "Connect") and the Brecksville-Broadview Heights City School District (hereinafter referred to as "the School") upon the following terms and conditions.

WHEREAS, Connect is a regional council of governments established pursuant to O.R.C. Chapter 167 and operates as an information technology center pursuant to O.R.C. 3301.075 and O.A.C. 3301-3; and

WHEREAS, as a regional council of governments and an information technology center, Connect provides various services to its members; and

WHEREAS, the School is a member of Connect and desires to purchase certain services from Connect pursuant to the terms and conditions set forth herein.

NOW, THEREFORE, for mutually acceptable consideration, the parties hereto agree as follows:

1. Services: Connect shall provide the School with all of the services specified in Exhibit A attached hereto (hereinafter referred to as "the Services").
2. Payment for Services:
 - a. As consideration for providing the Services, the School shall pay Connect the fees established for the Services as specified in Exhibit A attached hereto (hereinafter referred to as "the Service Fees"). The Service Fees shall be calculated based upon active students reported in the school's student information system or other equivalent total head count based upon changes to state of Ohio reporting for the immediately prior year. The Service Fees shall be due and payable on a quarterly basis on or before the first day of July, October, January, and April.
 - b. In addition to the Service Fees, the School shall be responsible to Connect for any and all costs of specified forms, rented equipment, equipment purchased on behalf of the School, equipment maintenance, and supplies incidental to the School's operation of the computer system, provided Connect has received the School's written approval prior to incurring such costs.
 - c. Upon the termination and/or expiration of this Contract, the School shall pay Connect for any and all costs associated with data conversion and/or transmission of the School's data on a time and materials basis.
 - d. If the School fails to pay any Service Fee or incidental charge when due and thereafter fails to pay such fee/charge within thirty (30) days after receipt from

Connect of written notice of such nonpayment, Connect may suspend services at any time upon delivery of written notice to the School.

3. Term: This Contract shall be for an initial term of three (3) years, commencing on July 1, 2020 and ending on June 30, 2023. Upon the conclusion of the initial term, this Contract shall automatically renew for successive one (1) year terms unless either party provides the other party with advance written notice of its intent not to renew this Contract at least sixty (60) days prior to the commencement of the renewal term.
4. Responsibilities of Connect:
 - a. Connect shall make every effort to maintain a minimum application availability of 98% during regular business hours. Connect shall make every effort to maintain application availability of 90% outside of regular business hours exclusive of regularly scheduled maintenance and backup.
 - b. Connect shall complete system maintenance, system upgrades, and system installations affecting system availability outside normal business hours unless any such maintenance, upgrade, or installation is necessary because of an unexpected system failure caused by events beyond Connect's control, or unless supporting vendors are not available outside normal business hours. Notification of every planned system outage shall be made at least twenty-four (24) hours in advance of the outage. Notification of system maintenance, system upgrades, and system installations affecting system availability will be provided to the School's designated representative via e-mail and in the system greeting displayed during system logon. In the event of an unexpected system failure, Connect will contact the School's designated representative via telephone to advise that the system is available for use.
 - c. Connect shall install all new versions, updates, and patches within timeframes specified by the software producer. Connect shall also maintain an appropriate application environment.
 - d. Connect shall, at the request of its advisory committees, evaluate new applications and services for the benefit of the School.
 - e. Connect shall maintain a regular backup schedule including at a minimum nightly data backup maintained on a thirty (30) day rotation, and monthly system backup maintained on a twelve (12) month rotation. Connect shall restore data from backup as required by the School.
 - f. Connect shall provide training to appropriate personnel of the School to the extent necessary for the School to perform system functions and procedures and to create system reports. Connect shall offer training for "new users" upon request of the School. Connect shall also maintain training attendance and survey results for periodic reporting to its Board of Directors.

- g. Connect shall provide and maintain appropriate and timely documentation to authorized users of the School where documentation is made available to Connect by supporting vendors. This documentation shall be made available in electronic and hardcopy format as appropriate.
 - h. Quality of service shall be determined by an overall customer satisfaction of 90% or greater. Connect shall evaluate the quality of service via any of the following: (1) Quarterly Advisory and Board of Director meetings; (2) Periodic customer surveys; (3) Training evaluation forms; and (4) Other methods as determined appropriate.
 - i. If requested by the School in writing, Connect shall plan and coordinate the School's ordering and installation, at the School's cost, of proper equipment and telephone lines, and shall provide information to the School to assist in obtaining necessary forms.
5. Responsibilities of the School:
- a. The School shall make its personnel and records available to Connect to the extent necessary to facilitate the planning, training, and implementation process.
 - b. The School shall designate appropriate and qualified personnel for training and access to Connect's systems and services.
 - c. The School shall notify Connect's designated support personnel regarding application and network issues.
 - d. The School shall notify Connect of relevant staff changes, including all individuals that are granted access to Connect's networks, systems, and applications.
 - e. The School shall participate in quality of service measuring activities as outlined previously, including but not limited to, advisory committee meetings, periodic customer surveys, and training evaluation forms.
6. Cooperation: Upon Connect's request, the School shall provide, without charge, copies of all information, data, records, and/or reports which Connect deems necessary to provide the Services. Appropriate conferences shall also be scheduled at convenient times with essential administrative personnel of both parties for the purpose of discussing necessary information.
7. Authority: Connect and the School hereby represent to each other that their respective undersigned officers are duly authorized to execute this Contract. Upon request, either party shall provide to the other party written evidence of such authorization and/or approval of this Contract.

8. Limitation on Liability:

- a. Connect shall not be liable to the School for failure to provide any service unless such failure is due to the gross negligence of Connect. In such event, the School's exclusive remedy shall be as follows: Connect shall re-create the reports incident to such service if the same can be reasonably performed and if the School provides Connect with any source data necessary for such work. If such work cannot be performed by Connect for any reason, the School shall be entitled to reimbursement by Connect of all costs incurred by the School to recover or reconstruct all lost data, in such form as necessary for the School's purposes, in an amount not to exceed the amount paid by the School for such service.
- b. Use of any information obtained through the Connect network is at the School's risk. Connect expressly denies any responsibility for the accuracy or quality of such information.
- c. The School recognizes and acknowledges that Connect does not make any warranties, express or implied, including without limitation any warranty of merchantability or fitness for a particular purpose, with respect to the network, the Services, or the Service's features, and the School hereby expressly disclaims all such warranties. Furthermore, the School agrees that Connect shall not be liable for any special, incidental, indirect, or consequential damages or for the loss of profit, revenue, or data arising out of the School's use of, or inability to use, the network, even if Connect shall have been advised of the possibility of the potential damage or loss.
- d. Connect shall not be liable for any losses, damages, or costs incurred as a result of the errors or omissions of the School, its employees or agents. Furthermore, Connect shall not be liable for failure to perform if such failure is due to causes or conditions beyond its control.

9. Confidentiality:

- a. Connect shall exercise reasonable care in preserving and protecting the confidentiality of information and materials furnished to it by the School.
- b. Connect shall not disclose any material, information or data concerning the School's operation to any person or entity without the School's prior written consent, except as required by law and as necessary or appropriate for Connect to carry out its proper functions.
- c. The School shall not disclose to any person or entity any material, information, or data obtained from Connect, whether through use of the computer system or otherwise, without Connect's prior written consent, except as required by law and as necessary or appropriate for the School to carry out its proper functions.

10. Property:

- a. All tapes, disk packs, computer programs, written procedures, and similar items utilized or developed by Connect in connection with this Contract shall at all times be the property of Connect.
- b. All data files shall remain the property of the School, subject to Connect's Data System Security Policy. Within ten (10) business days after the expiration or termination of this Contract and receipt of payment for any outstanding charges, including conversion and/or transmission charges, by Connect from the School, Connect shall return all available data files to the School. The files shall be returned in a form at the sole discretion of Connect.

11. Compliance with Law: Both parties shall comply with all applicable Federal, State, and Local laws, ordinances, codes, regulations, and policies, including but not limited to those governing the disclosure of confidential information regarding students and/or their family members, such as the Family Educational Rights and Privacy Act (20 U.S.C. §1232g).

12. Breach: If either party breaches a provision of this Contract, the non-breaching party shall provide the breaching party with written notice of said breach. If the breach is remedied within fifteen (15) days of receipt of the breach notice, said notice shall be void. If the breach is not remedied within fifteen (15) days of receipt of the breach notice, the non-breaching party shall have the right to terminate this Contract upon expiration of said remedy period. Neither party shall be responsible to the other for any losses or failure to perform its respective obligations under this Contract when such loss or failure is caused by conditions beyond the party's control, such as fire, explosion, water, act of God, civil disorder or disturbance, labor dispute, vandalism, war, riot, sabotage, weather or energy related closing, governmental regulations, or other similar causes. In the event that this Contract is terminated pursuant to this provision, the School shall pay all outstanding compensation owed to Connect for the Services provided through the effective date of the termination.

13. No Waiver: No failure of either party to exercise any power reserved to it by this Contract or to insist upon strict compliance by the other party with any obligation or condition hereunder and no custom or practice of the parties at variance with the terms hereof shall constitute a waiver of either party's right to demand strict compliance with any of the terms of this Contract. Waiver by either party of any particular default shall not affect or impair either party's right to exercise any or all of its rights and powers herein, nor shall that constitute a waiver by that party of any right hereunder, or of its right upon any subsequent breach or default to terminate this Contract prior to the expiration of its term.

14. Amendment: This Contract may not be reformed, altered, or modified in any way by any practice or course of dealing, but may be modified or amended only by an instrument in writing duly executed by both parties.
15. Assignment: Neither party may assign or otherwise transfer, voluntarily or by operation of law, this Contract without the prior written consent of the other party.
16. Entirety: This Contract contains the entire Contract between the parties, and there are no oral promises or other representations inducing its execution or qualifying its terms. Any prior service contract or similar type of agreement between the parties, oral or written, is hereby superseded and terminated.
17. Governing Law: The laws of the state of Ohio shall govern the validity, performance, and enforcement of this Contract.
18. Notices: Any notice required or permitted herein shall be in writing and deemed given if delivered personally or if sent via certified U.S. mail.
19. Severability: Each article, paragraph, provision, term, and condition of this Contract, and any portions thereof, shall be considered severable. If, for any reason, any portion of this Contract is determined to be invalid or contrary to any applicable law, rule, or regulation, the remaining portions of this Contract shall be unimpaired, remain binding on the parties, and continue to be given full force and effect.
20. Section Headings: The section headings contained in this Contract are for convenience of reference only and shall not affect the meaning or interpretation of this Contract.

IN WITNESS WHEREOF, the parties hereto have executed this Contract on the date first written above.

Connect:

Brecksville-Broadview Heights City
School District:

By: _____
Executive Director

By: _____

By: _____

By: _____

EXHIBIT A

Fiscal Year 2020-2021 Fee Schedule

Core Services						
		<u>Member</u>	<u>Unit</u>	<u>Non-Member</u>	<u>Unit</u>	<u>Comments</u>
<u>X</u>	Core Service Suite ³ (includes EMIS, Fiscal, Student, INFOhio - Library Automation)	\$14.50	Per THC/year ¹	\$16.00	Per THC/year ¹	\$1.50 Increase - No increase since 7/1/2012
	A la Carte EMIS Services Support	\$1.00	Per THC/year ¹			\$0.35 Increase - No increase since 7/1/2012
	A la Carte Fiscal Services Support ⁴	\$5.60	Per THC/year ¹			\$0.60 Increase - No increase since 7/1/2012
	A la Carte Student Services Support ⁵	\$6.40	Per THC/year ¹			\$0.65 Increase - No increase since 7/1/2012
	A la Carte INFOhio - Library Automation	\$3.00	Per THC/year ¹			\$0.25 Increase - No increase since 7/1/2012
<u>X</u>	Internet Services (per district requirements)	per district requirements				E-rate requires separate agreement
<u>X</u>	Software Vendor License/Subscription Costs					
	Infinite Campus Subscription	per Infinite Campus pricing				Please contact us for additional information
<u>X</u>	ProgressBook Suite Subscription	\$7.20	Per active student			Vendor increase of \$0.25 per student
	PowerSchool Subscription	\$5.41	Per active student			Vendor increase of \$0.21 per student
	Munis Financial ERP Subscription	\$6.37	Per THC/year ¹			Vendor increase of \$0.19 per student
<u>X</u>	eFinancePLUS Financial Subscription	per statewide contract				Please contact us for additional information
<u>X</u>	USAS/USPS/EIS License	\$0.50	Per THC/year ¹			Will not invoice if not assessed by MCOECN

Additional Connect Services					
		<u>Unit</u>			<u>Comments</u>
<u>X</u>	DataMap Support	\$3.50	Per THC/year ¹		Vendor increase
	EMIS Community School Support	\$4,000.00	Per Entity/year		Community schools only
	IEP Services - IEP Anywhere Standard	\$1.50	Per THC/year ¹		\$750 (non-districts)/\$1000 (districts) minimum
	IEP Services - IEP Anywhere Plus	\$1.80	Per THC/year ¹		\$750 (non-districts)/\$1000 (districts) minimum
<u>X</u>	IEP Service - SpS	\$1.75	Per THC/year ¹		Vendor increase
	Individual Professional Development Suite	\$1,000.00	Per year		No Increase
	Internet Content Filter	\$1.25	Per THC/year ¹		New solution - prior vendor cost increase
	Document Management	Contact for pricing			Per school / district requirements
	Performance Matters	per PowerSchool contract			New Service - optional modules available
	Requisition Approval Manager (RAM)	\$1,500.00	Per Entity/year		No Increase
	Textbook Management Service ²	\$500.00	Per Building/year		No Increase
<u>X</u>	VirtualClassroom Support	Included with ProgresBook			

1 THC is calculated based upon active students reported in the school's student information system or other equivalent total head count based upon changes to state of Ohio reporting.

2 One-time setup fee of \$1,000 per district is required

3 Member subscription to **Core Service Suite** includes an electronic resource credit of \$1.00 per high school THC

4 Available systems include: State Software (Classic and Redesign), Tyler Munis, and eFinancePLUS

5 Available systems include: PowerSchool, StudentInformation/ProgressBook (DASL), Infinite Campus